

24STLC02011 24STLC02011

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-08

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Case Number: 24STLC02011 Hearing Date: July 8, 2026 Dept: 25

HEARING DATE: Wed., July 8, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Progressive

Select Insurance Company v. Garcia

COMP. FILED: 03-20-24

CASE NUMBER: 24STLC02011

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE AND SET ASIDE DEFAULT AND DEFAULT JUDGMENT

MOVING PARTY: Defendant Beatriz Cornejo Garcia

RESP. PARTY: Plaintiff Progressive Select Insurance
Company

MOTION TO

SET ASIDE AND VACATE ENTRY OF DEFAULT AND DEFAULT JUDGMENT

(Code Civ. Proc., §§ 473.5)

TENTATIVE RULING:

The Court

DENIES Beatriz Cornejo Garcia's motion to set aside and vacate the default and

default judgment entered against her.

The Judicial Assistant will give
notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 2, 2026 ☐
Late ☐ None

REPLY: None
filed as of July 2, 2026 ☐
Late ☐ None

ANALYSIS:

Progressive Select Insurance Company obtained a
default judgment against Beatriz Cornejo Garcia in September 2025. Garcia now moves to have the judgment and
underlying default set aside under Code of Civil Procedure section 473.5, because
service failed to provide her with actual notice in time to defend the
action.

A threshold requirement for relief
under Code of Civil Procedure section 473.5 is the timeliness of the motion. The motion must be made “within a reasonable
time, but in no event exceeding the earlier of: (i) two years after entry of a
default judgment against the party; or (ii) 180 days after service on the party
of a written notice that the default or default judgment has been entered.” (Code Civ. Proc., § 473.5, subd. (a).) Garcia admits
that she received Progressive’s
“Request for Entry of Default” in August 2025; that document indicates that
default was entered on August 21, 2025. Garcia

filed this motion in June 2026—well beyond 180 days from receiving notice of the default, and without even an attempt to explain the delay. Garcia's motion is untimely, so the Court DENIES it.

The Judicial Assistant will give notice.